

DRAFT

PERFORMANCE WORK STATEMENT

1. Introduction:

The items to be furnished under this contract include towage services for U.S. Navy Ships (USS), Naval Fleet Auxiliary Force (NFAF) Ships of the Military Sealift Command (MSC) and U.S. Coast Guard (USCG) Ships in the Port of Rota, Spain in accordance with the below Performance Work Statement (PWS).

2. Scope:

Contractor shall provide all labor, equipment, materials, and all other resources necessary to deliver the services described in this PWS. Individual task orders will include the exact types and quantities of ELINs that the contractor must deliver. Task orders may require up to four (4) tug boats to perform services under this contract at any given time.

The contractor is responsible for complying with any applicable laws and regulations that are necessary to perform this contract, including but not limited to licenses, insurance, certifications, and safety equipment.

3. Tug Boat Specifications and ELIN Description:

TRACTOR STYLE TUG

This item is broken down depending on the Gross Tonnage (GRT) of the ship.

Each unit price shall cover the use of one tug for one ship that uses its own self-propelling power.

If more than one tug is ordered, the unit price shall be multiplied by the number of tugs used. If simultaneous services are provided to more than one ship, a price reduction shall be applied in accordance with ELIN XXX.

The time of each service is two hours. The performance starts when the tug is physically placed at the disposal of the vessel at the place and time designed by the Government ready to receive the orders from the ship and finishes when the final order given by the ship has been carried out. If the service takes more than two hours to be accomplished, the additional time shall be charged in accordance with ELIN XXX.

The contractor shall have a minimum of two (2) tractor style tug boats readily available to perform services under this contract. In the event they are unavailable, the contractor shall have a minimum of two (2) conventional style tug boats readily available as backup. Note that there will be occasions where the Government will order all four (4) tug boats to be used concurrently for a ship movement.

Tractor Style Tug Boats shall meet the following minimum specifications:

1. Minimum of 4000 SHP (Shaft Horsepower)
2. Minimum of 52.00 ton rating Bollard pull
3. Fendered to support sub-surface vessels to prevent metal-to-metal and screw-hull contact or damage.*
4. Able to operate in winds up to 40 knots
5. Able to operate in up to 15 foot seas
6. Has fire suppression and firefighting systems
7. Has radar and fathometer

* Any tug boat performing sub-surface vessel movements shall have sub-surface fendering.

CONVENTIONAL TUG

This item is broken down depending on the Gross Tonnage (GRT) of the ship.

Each unit price shall cover the use of one conventional tug for one ship that uses its own self-propelling power. If more than one tug is ordered, the unit price shall be multiplied by the number of tugs used. If a simultaneous services are provided to more than one ship, a price reduction shall be applied to subsequent service(s) in accordance with ELIN XXX.

The time of each service is two hours. The performance starts when the tug is physically placed at the disposal of the vessel at the place and time designed by the Government ready to receive the orders from the ship and finishes when the final order given by the ship has been carried out. If the service takes more than two hours to be accomplished, the additional time shall be charged in accordance with ELIN XXX.

Conventional Style Tug Boats shall meet the following specifications:

1. Minimum of 2000 SHP (Shaft Horsepower)
2. Minimum of 28.00 ton rating Bollard pull
3. Fendered to prevent metal-to metal and screw-hull contacts or damages
4. Able to operate in winds up to 40 knots
5. Able to operate in up to 15 foot seas
6. Has fire suppression and firefighting systems
7. Has radar and fathometer.

HOURLY RATE

This item is broken down depending on the following:

- Detention and stand-by of tugs caused by the ship not being ready or by other conditions not under the control of the Contractor;
- Other services due to emergency including but not limited to responses to weather conditions threatening ships, piers, dry-docks or shore facilities, shipboard fires, vessels aground, ship equipment failures, oil spills, mission of mercy, collisions and ammunition mishaps. Services routinely performed in difficult circumstances, i.e. reinforcing the mooring lines due to the weather conditions, are excluded.

Hourly rate for detention and stand-by shall be applied in case of delay over the first hour and shall be prorated to the nearest quarter hour. Any period beyond four hours from the time scheduled to be on station shall be charged at the full hourly rate. The contractor shall immediately notify the Contracting Officer and Port Operations when such a delay occurs. The Government shall not be liable for delay charges without prior Contracting Officer approval.

In the event a contractor causes a delay to a scheduled service, the Government reserves the right to pay a discounted price for the scheduled service, in accordance with the same terms and at the same price described above for Government-caused delays.

Examples of hourly rate calculations:

- 1) a ship that is 29 minutes late shall not be charged for detention.
- 2) a ship that is 1 hour and 20 minutes late shall be charged at the rate of 1/4 of the hourly rate
- 3) a ship that is 4 hours and 10 minutes late shall be charged 5 hours at the full hourly rate.

SERVICES RENDERED TO VESSELS WITHOUT HELM OR PROPULSION This item is broken down depending on the Gross Tonnage (GRT) of the ship.

Each of the following special services shall be applied an ELIN under XXX – XXX

- Shift of a vessel not using its own propelling power,
- Services performed outside the harbor (Rota Military Restricted Anchorage Area Limits),
- Change of berth in dock without leaving the bay.

The ELIN price for each of such services shall cover running time, and other expenses incurred, to and from the work site.

The time of each service is three hours and a half (including a standard one-and-one half hour for transit time). If the service takes more than three hours and a half to be accomplished, the additional time shall be charged in accordance with ELIN XXX.

SERVICES PROVIDED SIMULTANEOUSLY TO MORE THAN ONE SHIP.

In the event that one tug/more than one tug assists/assist more than one ship, a reduction shall be applied to the total amount of the service.

The reduction shall be expressed as a fixed amount to subtract from the total amount of the service.

To obtain the reduction the period between the ending of the first service and the beginning of the following shall not exceed one hour.

CANCELLATION FEES

This item is broken down depending on the GRT of the ship.

Cancellation fees shall be applied to orders not cancelled within one hour of the scheduled time for the service. Cancellations may be communicated by Port Operations or the Contracting Officer. A fixed price shall be applied based on the GRT category. Note that services that are only delayed but not completely cancelled fall under ELIN XXX.

In the event a contractor cancels a service ordered within the terms of this contract, the Government reserves the right to receive consideration for such cancellations at the same rates as XXX – XXX. Such consideration will typically be in the form of a discount on a subsequent service.

4. Personnel Security Requirements:

Contractor personnel performing under this contract will be required to obtain Base Access. The contractor shall gain and maintain access to Naval Station Rota and the Harbor in order to perform work under this contract.

5. Hours of Operation:

The contractor must be available 24 hours a day, 7 days a week, including holidays and weekends to perform these services.

The parties understand that, due to ship schedule volatility, the exact service dates may vary by 1-3 days from those listed in a task order; as such, the contractor must closely coordinate with Port Operations to confirm service dates prior to executing them.

The contractor may not charge additional overtime, holiday, or non-business hour fees. All ELIN prices are Firm Fixed Price and shall include any and all applicable fees, costs, or surcharges.

Task orders may be issued with minimum to no lead time ahead of a required service. The Government will typically contact the contractor to advise them of an urgent requirement, but the contractor shall only be required to execute the service after a task order is issued.

6. Government Furnished Property, Material, and Services:

Not applicable.

7. Place of Performance:

Work under this contract will be performed at NAVSTA Rota, Port Operations. Contractors shall store their tug boats at their own facilities.

8. Ordering

NAVSUP FLC is the primary ordering office under this IDIQ. However, other agencies, such as the US Coast Guard, may occasionally issue task orders under this IDIQ.

9. Period of Performance:

Indefinite Delivery Indefinite Quantity (IDIQ) contract with a five (5) year ordering period.

9.1 Transition Period:

To the maximum extent possible, the Government shall allow a 14 day transition period after award, prior to the execution of any task orders.

During this Transition Period, the contractor is required to meet in-person with Port Operations personnel to familiarize themselves with NAVSTA Rota Port Operations and to establish communication methods that will be employed between Government and contractor personnel during tug services. The contractor personnel is required to memorize and comply with the command signals set forth by the Government.

All contractor personnel that will be piloting tug boats are required to attend this meeting. If the contractor employs new personnel, such individuals will also be required to meet with Port Operations personnel prior to performing services under this contract.

This Transition Period is Not-Separately-Priced from other services under this contract.

10. Invoicing:

The contractor shall submit a single invoice to Port Operations per task order. All invoices shall be in English and must include:

1. Contractor's Name
2. Contract Number

3. Task Order Number
4. Date of Service
5. Name of Ship
6. Type and Quantity of ELIN
7. ELIN Unit Price and Extended Price
8. Total Invoice Price

The contractor shall submit invoices within seven (7) calendar days of service completion. In the event that ELIN XXX is being invoiced for a Government-caused delay, the contractor shall include the start and end time of the period being charged and submit proof of Contracting Officer approval IAW Section 3.0 (ELIN XXX).

11. Service Delivery Summary

The contractor shall comply with the performance standards below:

Performance Objective	Performance Requirement	Surveillance method	Frequency	Performance Threshold
Tug Services	Contractor provides requested number of tug boats at the time specified in the task order.	Inspection by the COR/Ship	100%	>98% on time performance with the number of tugs identified in the task order.
Response Time	Contractor confirms receipt of order and schedules tow within time frame required by PWS.	Inspection by COR	100%	>95% of requests are responded to within the time specified by the PWS.
Overall Contract Performance	Overall contract performance of sufficient quality to earn a Satisfactory (or higher) rating in the COR's annual report on Contractor Performance	Inspection by the COR	Annual	All performance elements rated Satisfactory (or higher)
Invoicing	Task Order invoices per contract procedures are timely and accurate.	Inspection by the COR		The invoices shall be timely and accurate as per contract procedures. 100% accuracy.
Compliance with FAR Clause 52.222-50 Combating Trafficking in Persons	Compliance with reporting requirements outlined in clause	Inspection by the COR	Randomly	100% compliance